Australian Government
Australian Pesticides and Veterinary Medicines Authority

PERMIT TO ALLOW SUPPLY AND MINOR USE OF AN UNREGISTERED AGVET CHEMICAL PRODUCT FOR CONTROL OF ALFATOXIN PRODUCING *ASPERGILLUS FLAVUS* IN PISTACHIO

PERMIT NUMBER – PER93203

This permit is issued to the Permit Holder in response to an application granted by the APVMA under section 112 of the Agvet Codes of the jurisdictions set out below. This permit allows a Supplier (as indicated) to possess the product for the purposes of supply and to supply the product to a person who can use the product under permit. This permit also allows a person, as stipulated below, to use the product in the manner specified in this permit in the designated jurisdictions. This permit also allows the Permit Holder, the Supplier (if not one and the same) and any person stipulated below to claim that the product can be used in the manner specified in this permit.

THIS PERMIT IS IN FORCE FROM 18 AUGUST 2025 TO 31 AUGUST 2028

Permit Holder:
PISTACHIO GROWERS AUST INC.
c/o AgAware Consulting Pty Ltd.
21, Rosella Avenue
STRATHFIELDSAYE VIC 3551

Supplier:
SYNGENTA AUSTRALIA PTY LTD
Level 1, 2-4 Lyonpark Road
MACQUARIE PARK NSW 2113

Persons who can use the product under this permit:
Persons generally

CONDITIONS OF USE

Products to be used:
AFLA-GUARD GR
AN UNREGISTERED PRODUCT
Containing: 1.2 x 10^8 CFU/lb (2.6 × 10^8 CFU/kg) of *ASPERGILLUS FLAVUS* STRAIN NRRL 21882 AS ATOXIGENIC SPORES as the only active constituent.

RESTRAINT:
DO NOT apply by aerial equipment.

Directions for Use:

Crop	Pest	Rate
Pistachios	Aflatoxin producing *Aspergillus* sp.	11.2 kg/ ha

Critical Use Comments:

- Apply from late November to early January to the soil under the tree canopy (the area that gets irrigated) during nut development.
- DO NOT apply more than once a year.
- Apply using granular applicator, fertiliser spreader or equivalent. Avoid contact with leaves.
- Apply prior to rain or irrigate within 3 days after application to improve results. Avoid application to areas that do not get wet.
- DO NOT mix with any other pesticide or fertiliser.
- Follow all directions given in the label in **Attachment 1**. **Where the label contradicts the permit, the permit must be followed**.

Withholding Period:
Harvest: Not required when used as directed.
Grazing: Do not graze the treated area.

RE-ENTRY
Do not enter treated areas on the day of product application. If prior entry is necessary, wear cotton overalls buttoned to the neck and wrist (or equivalent clothing), elbow length chemical resistant gloves, goggles, and half facepiece respirator with dust cartridge or canister. Clothing must be laundered after each day's use.

PROTECTION OF WILDLIFE, FISH, CRUSTACEA AND ENVIRONMENT

- DO NOT heap the product where animals can access it. Any spillages must be cleaned up immediately, preferably by recovery and re-use. If disposal is required, ensure product is thoroughly buried and not accessible to birds and other wildlife.
- DO NOT contaminate wetlands or watercourses with this product or used containers.

STORAGE AND SHELF-LIFE
Store in a dry, cool place out of direct sunlight and away from heat sources. Keep from overheating. Storage temperatures are not to exceed 90ºF (32ºC).
Do not use product more than 4 months after purchase or save product for use in the subsequent season.

DISPOSAL
Use all materials in this container by application according to the label instructions. Shake remainder into spreader hopper/tank by tapping the sides to loosen particles cleaning to the sides. Puncture and deliver empty packaging or unused product to an approved waste management facility. If an approved waste management facility is not available, dispose of empty container or unused product in compliance with relevant local, state or territory government regulations. Do not burn empty containers or product.

SAFETY DIRECTIONS
Harmful if inhaled. May irritate the eyes and skin. Repeated exposure may cause allergic disorders. Avoid contact with eyes and skin. Do not inhale dust. When using the product wear cotton overalls buttoned to the neck and wrist (or equivalent clothing), elbow length chemical resistant gloves, goggles, and half facepiece respirator with dust cartridge or canister. Wash hands after use. After each day's use wash gloves, goggles, and respirator and if rubber wash with detergent and warm water and contaminated clothing.

FIRST AID INSTRUCTIONS
If poisoning occurs, contact a doctor or Poisons Information Centre. Phone Australia 131126; New Zealand 0800 764 766. If skin contact occurs, remove contaminated clothing and wash skin thoroughly. If in eyes, hold eyes open, flood with water for at least 15 minutes and see a doctor.

Jurisdiction:
NSW, SA, VIC and WA only.

Additional Conditions:
This permit allows for the use of a product in a manner specified on the permit. Persons who wish to prepare for use and/or use products for the purposes specified in this permit must read, or have read to them, the details and conditions of this permit. Unless otherwise stated, the use of the product must be in accordance with the product label at **Attachment 1**.

Supply
The supplier must supply the product in a container that complies with the requirements of section 18 of the Agricultural and Veterinary Chemicals Code Regulations. Attached to this container must be a label which is identical in content and format to the label at **Attachment 1**.

Record keeping
Maintain records of all treatments performed under this permit. Details must include the date and locations where treatments occurred, the total amount of product used, and the names and addresses of the persons undertaking the use. These details must be maintained for a minimum period of two years from the date of expiry of this permit, and must be made available to the APVMA upon request.

The holder of the permit must notify the APVMA of new information, including relevant information in accordance with section 161 of the Schedule to the *Agricultural and Veterinary Chemicals Code Act 1994*, in accordance with the obligation imposed by that section.

Issued by the Australian Pesticides and Veterinary Medicines Authority

Attachment 1

Afla-Guard®
GR

syngenta.

For agricultural use to displace aflatoxin-producing fungi in almonds, peanuts, pistachios, and corn

OMRI LISTED

Active Ingredient:
Aspergillus flavus NRRL 21882* 0.0094%
Other Ingredients: 99.9906%
Total: 100.0000%

*Contains a minimum of 1.2 x 10^9 CFU/lb of product

KEEP OUT OF REACH OF CHILDREN

CAUTION

See additional precautionary statements and directions for use on the container label.

EPA Reg. No. 100-1469
EPA Est. No. 5905-GA-001

Manufactured for:
Syngenta Crop Protection, LLC
P. O. Box 18300
Greensboro, North Carolina 27419-8300

SCP 1469A-L1B 0321
4135777

Not for sale or use after _____

Lot No.: _____

PRODUCT ID
43767

50 pounds
Net Weight

Face Print

Attachment 1

Afla-Guard® GR

FIRST AID	
If in eyes	• Hold eye open and rinse slowly and gently with water for 15-20 minutes. • Remove contact lenses, if present, after the first 5 minutes, then continue rinsing eye. • Call a poison control center or doctor for treatment advice.
If on skin or clothing	• Take off contaminated clothing. • Rinse skin immediately with plenty of water for 15-20 minutes. • Call a poison control center or doctor for treatment advice.
If swallowed	• Call a poison control center or doctor immediately for treatment advice. • Have person sip a glass of water if able to swallow. • Do not induce vomiting unless told to do so by a poison control center or doctor. • Do not give anything by mouth to an unconscious person.
If inhaled	• Move person to fresh air. • If person is not breathing, call 911 or an ambulance, then give artificial respiration, preferably by mouth-to-mouth, if possible. • Call a poison control center or doctor for treatment advice.
Have the product container or label with you when calling a poison control center or doctor, or going for treatment.	
HOTLINE NUMBER For 24-Hour Medical Emergency Assistance (Human or Animal) or Chemical Emergency Assistance (Spill, Leak, Fire, or Accident), Call **1-800-888-8372**	

PRECAUTIONARY STATEMENTS

Hazards to Humans and Domestic Animals

CAUTION

Causes moderate eye irritation. Harmful if absorbed through skin, swallowed, or inhaled. Prolonged or frequently repeated skin contact may cause allergic reactions in some individuals. Avoid contact with skin, eyes, or clothing. Avoid breathing dust. Wash thoroughly with soap and water after handling and before eating, drinking, chewing gum, using tobacco, or using the toilet. Remove and wash contaminated clothing before reuse.

Personal Protective Equipment (PPE)

Applicators, mixers, loaders and other handlers must wear:

- Long-sleeved shirt and long pants
- Waterproof gloves
- Shoes plus socks
- Goggles

Mixers/loaders and applicators must wear a NIOSH-approved particulate respirator with any N, R or P filter with NIOSH approval number prefix TC-84A; or a NIOSH-approved powered air purifying respirator with an HE filter with NIOSH approval number prefix TC-21C. Repeated exposure to high concentrations of microbial proteins can cause allergic sensitization.

Follow the manufacturer's instructions for cleaning/maintaining PPE. If no instructions are available, use detergent and hot water for washables. Keep and wash PPE separately from other laundry.

User Safety Recommendations

Users should:

- Remove clothing/PPE immediately if pesticide gets inside. Then wash thoroughly and put on clean clothing.
- Remove PPE immediately after handling this product. Wash the outside of gloves before removing. As soon as possible, wash thoroughly and change into clean clothing.

Environmental Hazards

For terrestrial uses: Do not apply directly to water, or to areas where surface water is present, or to intertidal areas below the mean highwater mark. Do not contaminate water by cleaning equipment or disposal of equipment washwater or rinsate.

DIRECTIONS FOR USE

It is a violation of Federal law to apply this product in a manner inconsistent with its labeling. Do not apply this product in a way that will contact workers or other persons, either directly or through drift. Only protected handlers may be in the area during application. Do not apply in the vicinity of schools, daycares, nursing homes and residential areas. For any requirements specific to your State or Tribe, consult the State or Tribal agency responsible for pesticide regulation.

Afla-Guard® GR

PRODUCT INFORMATION

Afla-Guard GR is a biological control agent for displacing the strains of *Aspergillus flavus* (*A. flavus*). The active ingredient in Afla-Guard GR is a nontoxigenic strain of *A. flavus* (NRRL 21882). Afla-Guard GR acts by competitively displacing toxigenic, aflatoxin-producing strains of *A. flavus* on labeled crops. Afla-Guard GR is for use on almonds, peanuts, pistachios, and corn (field and popcorn) only.

AGRICULTURAL USE REQUIREMENTS

Use this product only in accordance with the Worker Protection Standard, 40 CFR Part 170. This Standard contains requirements for the protection of agricultural workers on farms, forests, nurseries, and greenhouses, and, handlers of agricultural pesticides. It contains requirements for training, decontamination, notification, and emergency assistance. It also contains specific instructions and exceptions pertaining to the statement on this label about personal protective equipment (PPE), and restricted-entry interval. The requirements in this box only apply to uses of this product that are covered by the Worker Protection Standard.

Do not enter or allow worker entry into treated areas during the restricted entry interval (REI) of 4 hours.

PPE required for early entry to treated areas (that is permitted under the Worker Protection Standard and that involves contact with anything that has been treated, such as plants, soil, or water), is:

- Coveralls
- Waterproof gloves
- Shoes plus socks
- A NIOSH-approved particulate respirator with any N, R or P filter with NIOSH approval number prefix TC-84A; or a NIOSH-approved powered air purifying respirator with an HE filter with NIOSH approval number prefix TC-21C
- Goggles

USE DIRECTIONS

For aerial applications: Avoiding drift at the application site is the responsibility of the applicator. The interaction of many equipment- and weather-related factors determine the potential for drift. The applicator and treatment coordinator are responsible for considering all these factors when making decisions.

Peanuts

Ground Application: Apply Afla-Guard GR at 20 lb/Acre (A) in a band over crop rows by using a tractor-mounted Gandy box or by broadcast application. Apply at full canopy (40-80 days after planting). At the time of application, the width of a peanut row (measured from the outer edges of the foliage canopy) is ideally about 18 inches.

Aerial Application: Apply by air at 20 lb/A broadcast. Apply as soon as practical after closure of the peanut canopy, within 90 days after planting.

Do not exceed 20 lb/A per growing season.

Corn (field corn and popcorn)

Ground and Aerial Application: Apply Afla-Guard GR from growth stage V7 to R1 (the V7 growth stage is when there are 7 visible leaf collars present and the R1 growth stage is the onset of silking) using broadcast application equipment. Cultivation or other mechanical operations that may move soil so that it covers the Afla-Guard GR grain may preclude maximum performance. Therefore, DO NOT APPLY AFLA-GUARD GR UNTIL ALL CULTIVATION OR OTHER MECHANICAL OPERATIONS ARE COMPLETED.

Do not exceed 20 lb/A per growing season.

Apply Afla-Guard GR at a use rate of 10-20 lb/A.

Under environmental conditions that promote severe aflatoxin levels or when historically high levels of aflatoxin have occurred in the past in your area, use the 20 lb/A rate.

Rescue treatment: If an initial rate of 10 lb/A was applied, a rescue treatment of 10 lb/A may follow if environmental conditions are anticipated to reduce the efficacy of Afla-Guard GR (i.e. flooding), or when higher than usual levels of aflatoxin are expected.

Almond and Pistachio

Ground Application:

1. Apply Afla-Guard GR to the surface of the soil under the plant canopy with a granular applicator. DO NOT COVER THE APPLIED PRODUCT WITH SOIL.
2. Adjust the applicator to optimize delivery of Afla-Guard GR under the canopy and to minimize delivery of Afla-Guard GR to areas that do not get wet.
3. Afla-Guard GR has been shown to be effective when applied in Pistachio from late May through early July, and in Almond from late May through early July.
4. Rain or irrigation within 3 days after application of Afla-Guard GR will improve results.
5. Use 10 lb of Afla-Guard GR per acre.
6. Do not apply more than once per year.
7. Do not apply to almonds in bloom.

Afla-Guard® GR

STORAGE AND DISPOSAL

Do not contaminate water, food, or feed by storage or disposal.

Pesticide Storage: Store in a dry, cool place out of direct sunlight and away from heat sources. Keep from overheating. Storage temperatures are not to exceed 90°F. Do not use product more than 4 months after purchase or save product for use in the subsequent season.

Pesticide Disposal: To avoid waste, use all material in this container by application according to label directions. If waste cannot be avoided, offer remaining products to a waste disposal facility or pesticide disposal program (often such programs are run by state or local governments or by industry).

Container Handling: Nonrefillable container. Do not reuse or refill this container. Completely empty bag into application equipment by shaking and tapping the sides and bottom to loosen clinging particles. Then dispose of empty bag in a sanitary landfill or by incineration, or if allowed by state and local authorities, by burning. If burned, stay out of smoke. Do not recycle.

CONDITIONS OF SALE AND LIMITATION OF WARRANTY AND LIABILITY

NOTICE: Read the entire Directions for Use and Conditions of Sale and Limitation of Warranty and Liability before buying or using this product. If the terms are not acceptable, return the product at once, unopened, and the purchase price will be refunded.

The Directions for Use of this product must be followed carefully. It is impossible to eliminate all risks inherently associated with the use of this product. Crop injury, ineffectiveness or other unintended consequences may result because of such factors as manner of use or application, weather or crop conditions, presence of other materials or other influencing factors in the use of the product, which are beyond the control of SYNGENTA CROP PROTECTION, LLC (hereafter SYNGENTA) or Seller. To the extent permitted by applicable law, Buyer and User agree to hold SYNGENTA and Seller harmless for any claims relating to such factors.

SYNGENTA warrants that this product conforms to the chemical description on the label and is reasonably fit for the purposes stated in the Directions for Use, subject to the inherent risks referred to above, when used in accordance with directions under normal use conditions. To the extent permitted by applicable law: (1) this warranty does not extend to the use of the product contrary to label instructions, or under conditions not reasonably foreseeable to or beyond the control of Seller or SYNGENTA, and (2) Buyer and User assume the risk of any such use. TO THE EXTENT PERMITTED BY APPLICABLE LAW, SYNGENTA MAKES NO WARRANTIES OF MERCHANTABILITY OR OF FITNESS FOR A PARTICULAR PURPOSE NOR ANY OTHER EXPRESS OR IMPLIED WARRANTY EXCEPT AS WARRANTED BY THIS LABEL.

To the extent permitted by applicable law, in no event shall SYNGENTA be liable for any incidental, consequential or special damages resulting from the use or handling of this product. **TO THE EXTENT PERMITTED BY APPLICABLE LAW, THE EXCLUSIVE REMEDY OF THE USER OR BUYER, AND THE EXCLUSIVE LIABILITY OF SYNGENTA AND SELLER FOR ANY AND ALL CLAIMS, LOSSES, INJURIES OR DAMAGES (INCLUDING CLAIMS BASED ON BREACH OF WARRANTY, CONTRACT, NEGLIGENCE, TORT, STRICT LIABILITY OR OTHERWISE) RESULTING FROM THE USE OR HANDLING OF THIS PRODUCT, SHALL BE THE RETURN OF THE PURCHASE PRICE OF THE PRODUCT OR, AT THE ELECTION OF SYNGENTA OR SELLER, THE REPLACEMENT OF THE PRODUCT.**

SYNGENTA and Seller offer this product, and Buyer and User accept it, subject to the foregoing Conditions of Sale and Limitation of Warranty and Liability, which may not be modified except by written agreement signed by a duly authorized representative of SYNGENTA.

Afla-Guard®, The ALLIANCE FRAME
the SYNGENTA Logo, and the PURPOSE ICON
are Trademarks of a Syngenta Group Company